

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X
WARREN FOSTER, DECEASED BY HIS MOTHER AND
ADMINISTRATOR OF HIS ESTATE JOANNE FOSTER
AND JOANNE FOSTER INDIVIDUALLY,

Plaintiffs,

-against-

CITY OF NEW YORK, POLICE OFFICER ROBERT
URIBE, and POLICE OFFICER MD J UDDIN, and JOHN or
JANE DOES "1-10", individually and officially in their
capacities as police officers

Defendants.
-----X

Index No.:

Date Purchased:

SUMMONS

Plaintiff designates New
York County as the place of
trial.

The basis of venue is:
Where the incident
occurred

Plaintiff resides at:
321 8th Street
Saddle Brook, NJ 07663
County of Bergen

To the above-named Defendant(s):

You are hereby summoned to answer the complaint in this action and to serve a copy of your answer, or if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
March 8, 2024



JOHN K. KOUROUPAS
GREENBERG & STEIN, P.C.
Attorney for Plaintiff(s)
WARREN FOSTER, DECEASED BY HIS
MOTHER AND ADMINISTRATOR OF HIS
ESTATE JOANNE FOSTER AND JOANNE
FOSTER INDIVIDUALLY,
420 Lexington Avenue, Suite 2450
New York, New York 10170
(212) 681-2535
Our File No. 7275

TO:

CITY OF NEW YORK
100 Church Street
New York, New York 10007

Police Officer Robert Uribe
Shield No. 20097
28th Precinct
2271-89 Frederick Douglass Blvd
New York, NY 10027

Police Officer MD J. Uddin
Shield No. 12096
28th Precinct
2271-89 Frederick Douglass Blvd
New York, NY 10027

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X
WARREN FOSTER, DECEASED BY HIS MOTHER AND
ADMINISTRATOR OF HIS ESTATE JOANNE FOSTER
AND JOANNE FOSTER INDIVIDUALLY,

**VERIFIED
COMPLAINT**

Plaintiffs,

Index No.:

Date Purchased:

-against-

CITY OF NEW YORK, POLICE OFFICER ROBERT
URIBE, and POLICE OFFICER MD J UDDIN, and JOHN or
JANE DOES "1-10", individually and officially in their
capacities as police officers,

Defendants.

-----X
Plaintiff, **WARREN FOSTER** by his attorneys, GREENBERG & STEIN, P.C., as and for
his complaint against the Defendants, **CITY OF NEW YORK, ROBERT URIBE, MD J.
UDDIN and JOHN or JANE DOES "1-10"**, individually and officially in their capacities as
police officers, allege and state as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action, in which Plaintiff seeks relief, vis-à-vis 42 U.S.C. §§ 1981, 1983, 1985, 1986 and 1988, the laws of the State of New York, in addition to the self-executing clauses or implied private causes of action within the constitution of the State of New York, for the violations of his civil rights and the deprivations to his liberties, as enumerated and promulgated by the Fourth and Fourteenth Amendments to the Constitution of the United States, as well as the laws and constitution of the State of New York.

2. That on October 27, 2023, by Order of the Honorable Nelida Malave-Gonzalez, Letters of Administration upon the goods, chattels and credits which were of **WARREN FOSTER**, deceased, were duly granted to Plaintiff **JOANNE FOSTER** by the Surrogate's Court

of the State of New York and said Plaintiff thereupon became duly qualified to act as ADMINISTRATOR OF THE ESTATE OF **WARREN FOSTER**, Deceased.

3. The following claims arose on or about May 28, 2020 when Defendants, acting under color of state law, unlawfully stopped, questioned, searched, assaulted, battered, arrested, and detained Plaintiffs without a valid judicially authorized arrest warrant, reasonable suspicion, probable cause, or any other legal justification to do so.

4. The above referenced acts caused Plaintiffs to be deprived of his liberty in violation of his rights to be free from unreasonable searches and seizures and to be afforded Equal Protection under the law.

5. Plaintiffs seeks monetary damages (compensatory and punitive) against Defendants, an award of costs and attorney's fees, with all interest then accrued, together with such other and further relief as this Court may deem just and proper.

JURISDICTION

6. This action arises under the First, Fourth, Fifth and Fourteenth Amendments to the United States Constitution, under 42 U.S.C. §§ 1981, 1983, 1985, 1986 and 1988 and pursuant to the Laws and constitution of the State of New York.

7. The jurisdiction of this Court is predicated upon 28 U.S.C. §§ 1331, 1343(a)(3) and (4), 1367(a) and the doctrine of supplemental jurisdiction.

VENUE

8. Venue is laid within the Supreme Court State of New York, County of Bronx in that Defendant City of New York is located within and a substantial part of the events giving rise to the claims occurred within the boundaries of the Supreme Court.

PARTIES

9. At all relevant times, Plaintiff, **WARREN FOSTER**, is an adult African American males, residing in Bergen County, New Jersey.

10. At all relevant times, Defendant, **City of New York** (“City”), is a municipal corporation organized under the laws of the State of New York.

11. At all relevant times herein, the New York Police Department (“NYPD”) is a wholly owned subsidiary, which is further wholly operated, managed, maintained, and controlled by Defendant City.

12. At all relevant times herein, Defendant City, acting through its NYPD, was responsible for the policy, practice, supervision, implementation, and conduct of all NYPD matters and was responsible for the appointment, screening, hiring, training, supervision, discipline, retention, and conduct of all NYPD personnel, including police officers, detectives, investigators, sergeants, lieutenants, and other supervisory officers or officials, as well as the individually named Defendants herein.

12. At all relevant times herein, Defendant City, was responsible for enforcing the rules or regulations of the NYPD, and for ensuring that the NYPD personnel obey the laws and constitutions of the United States and the State of New York.

13. At all relevant times herein, Defendants, **JOHN OR JANE DOES, “1-10”**, were police officers, detectives, supervisors, policymakers or officials employed by the NYPD and or City of New York. At this time, Plaintiffs did not know the true names or tax registry numbers of Defendants, **JOHN OR JANE DOES, “1-10”**, as such knowledge is within the exclusive possession of Defendants. The names, **JOHN OR JANE DOES, “1-10”**, are fictitious and are

meant as placeholders for the Police Officers who falsely arrested and subjected Plaintiffs to excessive force.

14. At all relevant times herein, Defendants, **ROBERT URIBE, MD J UDDIN** and **JOHN OR JANE DOES, "1-10"**, were acting as agents, servants and employees of the City of New York, or the NYPD. Defendants **ROBERT URIBE, MD J UDDIN** and **JOHN OR JANE DOES, "1-10"**, are being sued in their individual and official capacities.

15. At all relevant times herein, Defendants were acting under color of state law, to wit, under color of the statutes, ordinances, regulations, policies, customs, and usages of the City of New York or State of New York.

16. That within the time prescribed by law, a sworn Notice of Claim stating, among other things, the time when and place where the injuries and damages were sustained, together with Plaintiffs' demands for adjustment thereof was duly served on the Plaintiffs behalf on the Comptroller for the City of New York and that thereafter said Comptroller for the City of New York refused or neglected for more than thirty (30) days, and up to the commencement of this action, to make any adjustment or payment thereof, and that thereafter, and within the time provided by law, this action was commenced.

17. That pursuant to General Municipal Law 50-h, both plaintiffs appeared at a virtual 50-H hearing by the Office of the Comptroller or at the office of a designated agent.

18. At all times relevant hereto, Defendant City, acting through the New York City Police Department ("NYPD"), was responsible for the policy, practice, supervision, implementation, and conduct of all NYPD matters and was responsible for the appointment, training, supervision, discipline and retention and conduct of all NYPD personnel, including police officers, detectives and supervisory officers as well as the individually named Defendants herein.

19. At all times here relevant, Defendant City was responsible for enforcing the rules of the NYPD, and for ensuring that the NYPD personnel obey the laws of the United States and of the State of New York.

FACTUAL CHARGES

20. On, or about, April 28, 2022, at approximately 5:27 p.m., Plaintiff, **WARREN FOSTER**, was driving in the vicinity of Saint Nicholas Avenue and West 114th Street, County and State of New York, when defendants, including, **ROBERT URIBE, MD J UDDIN** and **JOHN OR JANE DOES, "1-10"**, illegally searched, seized, detained and arrested him.

21. Plaintiff had not committed any crimes or violations of law, nor had there been any indication of such, and nor had they been accused of such by any identified civilian witnesses.

22. Defendants, including **ROBERT URIBE, MD J UDDIN** and **JOHN OR JANE DOES, "1-10"**, then yelled and continued to aim their weapons at plaintiff **WARREN FOSTER**, and, causing plaintiff **WARREN FOSTER** to experience severe humiliation, degradation, and the loss of his dignity as well as the shock of being confronted with a weapon.

23. Defendants, including **ROBERT URIBE, MD J UDDIN** and **JOHN OR JANE DOES, "1-10"**, then accused plaintiff **WARREN FOSTER** of a criminal offense before investigating whether or not he could be positively identified as the individual they were looking for.

24. Due to the lack of probable cause, the aforementioned conduct by Defendants, including **ROBERT URIBE, MD J UDDIN** and **JOHN OR JANE DOES, "1-10"**, constitute the completed torts of Assault and Battery.

25. Defendants, including **ROBERT URIBE, MD J UDDIN** and **JOHN OR JANE DOES, "1-10"**, never observed Plaintiffs committing any crime or violation of the law, or any act that could reasonably be suspected as such.

26. Defendants, including **ROBERT URIBE, MD J UDDIN** and **JOHN OR JANE DOES, "1-10"**, had no probable cause or reasonable suspicion to justify their seizure, search, questioning, detention, or arrest of Plaintiffs, as defendants did not possess any credible evidence that would lead a reasonable officer to believe that Plaintiffs had committed any crime or violation of the law.

27. Defendants, including **ROBERT URIBE, MD J UDDIN** and **JOHN OR JANE DOES, "1-10"**, engaged in a gross deviation from acceptable police conduct and other conduct undertaken in bad faith.

28. Plaintiffs asserts that Defendants, including **ROBERT URIBE, MD J UDDIN** and **JOHN OR JANE DOES, "1-10"**, falsely arrested plaintiffs **WARREN FOSTER** and wrongfully detained Plaintiffs altogether with the full knowledge that the Plaintiffs had not actually committed any crimes or violations of the law.

29. As a result, Plaintiffs were caused to be unlawfully, involuntarily, and continuously detained by defendants, including **ROBERT URIBE, MD J UDDIN** and **JOHN OR JANE DOES, "1-10"**, until their release from physical custody when said defendants ended their illegal search.

30. At all times relevant hereto, Defendants, including **ROBERT URIBE, MD J UDDIN** and **JOHN OR JANE DOES, "1-10"**, were involved in the decision to seize, search, detain, and arrest Plaintiffs without reasonable suspicion or probable cause, or failed to intervene when they observed others doing do in the absence of any reasonable suspicion or probable cause.

31. At all times relevant hereto, Defendants, including **ROBERT URIBE, MD J UDDIN** and **JOHN OR JANE DOES, "1-10"**, subjected Plaintiffs to excessive force, or failed to intervene when they observed others subjecting Plaintiffs to excessive force.

32. Defendants, including **ROBERT URIBE, MD J UDDIN** and **JOHN OR JANE DOES, "1-10"**, engaged in a conspiracy to falsely arrest plaintiffs **WARREN FOSTER** by personally conferring with each other regarding the fabrication of the aforementioned non-existent evidence, the suppression of exculpatory evidence, as well as the manner and means by which said fabrications could be used to deprive Plaintiff of his liberty and violate his civil rights.

33. Plaintiff asserts that Defendants, including **ROBERT URIBE, MD J UDDIN** and **JOHN OR JANE DOES, "1-10"**, illegally approached, seized, searched, and then falsely arrested him, due to their discriminatory prejudices against African Americans, their intent to use the instant arrest as leverage against plaintiffs or relatives of plaintiffs, so that he would provide defendants with information regarding other crimes or criminal suspects, their desires to fulfill an unconstitutional arrest quota, and to benefit from increased overtime compensation.

34. Defendants, including **ROBERT URIBE, MD J UDDIN** and **JOHN OR JANE DOES, "1-10"**, arrested Plaintiffs, because of their racially discriminatory beliefs, which compelled defendants to equate to Plaintiffs' ethnic or national origin to criminal guilt or criminal knowledge.

35. Defendants, including **ROBERT URIBE, MD J UDDIN** and **JOHN OR JANE DOES, "1-10"**, perpetrated multiple overt acts in furtherance of their obviously discriminatory inclinations, namely the complained-of stop, searches, assaults, batteries, seizure, arrest, and detention of Plaintiffs, even after they were unable to discover any evidence to justify such conduct.

36. Defendants, including **ROBERT URIBE, MD J UDDIN** and **JOHN OR JANE DOES, "1-10"**, unlawfully stopped, questioned, searched, seized, arrested, and detained plaintiffs, due to Defendants' perception or consideration of Plaintiffs' ethnicity or national origin.

37. Defendants, including **ROBERT URIBE, MD J UDDIN** and **JOHN OR JANE DOES, "1-10"**, possessed no valid reason to stop, question, search, or arrest Plaintiffs, which gives rise to the strong inference that such conduct resulted from defendants' unjust motivations or proclivities.

38. Defendants, including **ROBERT URIBE, MD J UDDIN** and **JOHN OR JANE DOES, "1-10"**, subjected Plaintiffs to disparate treatment compared to other individuals similarly situated, because defendants did not stop, seize, search, detain, arrest, or accuse any white individuals who had engaged in activity identical to the kind that resulted in Plaintiffs' illegal search and seizure.

39. Plaintiffs assert that the Defendants, including **ROBERT URIBE, MD J UDDIN** and **JOHN OR JANE DOES, "1-10"**, who violated Plaintiffs' civil rights, are part of a larger pattern and practice of similar misconduct, which is so widespread, pervasive and consistent throughout the NYPD and the City of New York that the commission such constitutionally violative behavior has become tantamount to an official policy or custom within the NYPD and City of New York or, at the very least, conclusive evidence that the City, NYPD, have either tacitly approved of such egregious wrongdoings or that they have become deliberately indifferent to the civil rights of those who may come into contact with their police officers.

40. The identities of Defendants, including **ROBERT URIBE, MD J UDDIN** and **JOHN OR JANE DOES, "1-10"**, are unknown at this present time. However, these Defendants were participated in the false arrest, unlawful search, seizure, and detention of Plaintiffs. The

identities of Defendants, including **ROBERT URIBE, MD J UDDIN** and **JOHN OR JANE DOES, "1-10"**, are known exclusively to the Defendants.

41. The individually named defendants herein, as well as other officers serving in the employ of the NYPD and City of New York, have blatantly, shamelessly, consistently, and repeatedly engaged in conduct violative of the civil rights guaranteed and protected by Constitution of the United States, in addition to the laws and constitution of the State of New York, all without incurring any ramifications for such misconduct and, ostensibly, with the full and complete blessing of the NYPD and the City of New York, in addition to their respective policymakers and supervisors.

42. Upon information and belief, the NYPD and City of New York, and their respective policymakers, officials or supervisors have imposed, tacitly approved, or acquiesced to policies, customs, or patterns and practices within the NYPD that resulted in Plaintiffs' arrests without probable cause.

43. Upon information and belief, the NYPD and City of New York, and their respective policymakers or supervisors have failed to provide adequate training regarding the identification of probable cause, reasonable suspicion or the appropriate amount of force to be used.

44. Defendants' actions, which occurred without even the semblance of probable cause, were so blatantly violative of his civil rights that the tacit approval of identical or similar acts by the policymakers or supervisors of the NYPD and the City of New York, as well as their deliberate indifference towards the rights of any individuals who may come into contact with Defendants, should be inferred, because such flagrant deprivations of constitutionally protected rights could not and would not occur without the tacit approval or deliberate indifference regarding the

commission of such violations by the policymakers or supervisors of the NYPD and City of New York.

45. Upon information and belief, further details and facts, relating to the unlawful policies, customs or patterns and practices of the NYPD, City of New York and their respective policymakers, supervisors, police officers or employees, will become known after the completion of discovery, as such information is presently within the exclusive possession of Defendants, the NYPD and City of New York.

46. Upon information and belief, the personnel files, records and disciplinary histories of the officer Defendants will reveal a history of Constitutional violations indicative of Defendant City's knowledge that the individual officer Defendants were unfit for employment as NYPD officers, or for employment in general, and that the probability of the individually named Defendants committing similar violations in the future was extremely high.

47. Upon information and belief, said personnel files, records and disciplinary histories will conclusively show that the City and NYPD were fully aware of Defendants' past constitutional violations, the unacceptably high probability for the recurrence of similar transgressions, the unreasonably dangerous situations that were likely to result from their hiring or retention, as well as their unsuitability for employment as law enforcement officers, or for employment in general, and that the NYPD and City of New York failed to engage in any preventive or corrective action intended to diminish the likelihood of recurrence for such violations, which is tantamount to the City's tacit approval of such misconduct or the City's deliberate indifference towards the civil rights of those who may interact with its employees, including Defendants **ROBERT URIBE, MD J UDDIN, JOHN DOES 1-10.**

48. Upon information and belief, the individually named Defendants have combined to be named as Defendants in numerous lawsuits that have accused them of committing violations similar or identical to those alleged herein, all of which have resulted no disciplinary or corrective action of any kind.

49. Upon information and belief, the NYPD and City of New York have failed, or outright refused, to correct the individually named Defendants' predilections to engage in unconstitutional behavior or attempt to prevent the recurrence of such misconduct.

50. The aforementioned acts of Defendants, including **ROBERT URIBE, MD J UDDIN** and **JOHN OR JANE DOES, "1-10"**, directly or proximately resulted in the deprivation or violation of Plaintiffs' civil rights, as guaranteed and protected by the Fourth and Fourteenth Amendments to the United States Constitution, as well as the laws and Constitution of the State of New York.

51. As a direct or proximate result of said acts, Plaintiffs was caused to suffer the loss of his liberty, irreparable reputational harm, loss of earnings and potential earnings, physical injury, as well as severe and permanent emotional distress, including fear, embarrassment, humiliation, traumatization, frustration, extreme inconvenience and anxiety.

FIRST CAUSE OF ACTION
Unlawful Search and Seizure Under
New York State Law

52. Plaintiff re-alleges and re-avers Paragraph 1 through 48 of this Complaint as if fully set forth herein.

53. Defendants subjected plaintiff and his property to unreasonable searches and seizures without a valid warrant and without reasonable suspicion or probable cause do so.

54. Plaintiff was conscious and fully aware of the unreasonable searches and seizures to (his/her) person and property.

55. Plaintiff did not consent to the unreasonable searches and seizures to his person or property.

56. The unreasonable searches and seizures to plaintiff's person and property were not otherwise privileged.

57. Accordingly, defendants violated plaintiff's right to be free from unreasonable searches and seizures, pursuant to the Fourth Amendment to the United States Constitution and Article I, Section 12, of the New York State Constitution.

58. Defendant City of New York, as employer of the individual Defendants, is responsible for their wrongdoings under the doctrine of *respondeat superior*.

59. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

SECOND CAUSE OF ACTION

Unlawful Search and Seizure Under 42. U.S.C. § 1983 Against Individual Defendants

60. Plaintiff re-alleges and re-avers Paragraph 1 through 56 of this Complaint as if fully set forth herein. Defendants subjected plaintiff and his property to unreasonable searches and seizures without a valid warrant and without reasonable suspicion or probable cause do so.

61. Plaintiff was conscious and fully aware of the unreasonable searches and seizures to his person and property.

62. Plaintiff did not consent to the unreasonable searches and seizures to (his/her) person or property.

63. The unreasonable searches and seizures to plaintiff's person and property were not otherwise privileged.

64. Accordingly, defendants violated plaintiff's right to be free from unreasonable searches and seizures, pursuant to the Fourth Amendment to the United States Constitution and Article I, Section 12, of the New York State Constitution.

65. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

THIRD CAUSE OF ACTION

False Arrest and False Imprisonment Under
New York State Law

66. Plaintiff re-alleges and re-avers Paragraph 1 through 63 of this Complaint as if fully set forth herein. Defendants subjected Plaintiff to false arrest, false imprisonment, and deprivation of liberty without probable cause.

67. Plaintiff was conscious of his confinement.

68. Plaintiff did not consent to his confinement.

69. Plaintiff's arrest and false imprisonment was not otherwise privileged.

70. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

71. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

FOURTH CAUSE OF ACTION

False Arrest and False Imprisonment Under
42. U.S.C. § 1983 Against Individual Defendants

72. Plaintiff re-alleges and re-avers Paragraphs 1 through 70 of this Complaint as if fully set forth herein.

73. The Defendants violated the Fourth and Fourteenth Amendments to the U.S. Constitution by wrongfully and illegally arresting, detaining and imprisoning Plaintiff.

74. The wrongful, unjustifiable, and unlawful apprehension, arrest, detention, and imprisonment of Plaintiff was carried out without a valid warrant, without Plaintiff's consent, and without probable cause or reasonable suspicion.

75. At all relevant times, Defendants acted forcibly in apprehending, arresting, and imprisoning Plaintiff.

76. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

FIFTH CAUSE OF ACTION

Assault and Battery Under New York State Law

77. Plaintiff re-alleges and re-avers Paragraph 1 through 75 of this Complaint as if fully set forth herein.

78. Defendants made plaintiff fear for his physical well-being and safety and placed his in apprehension of immediate harmful and/or offensive touching.

79. Defendants engaged in and subjected plaintiff to immediate harmful and/or offensive touching and battered his without his consent.

80. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

81. As a direct and proximate result of this breach, Plaintiff sustained the damages hereinbefore alleged.

SIXTH CAUSE OF ACTION

Excessive Force Under

42. U.S.C. § 1983 Against Individual Defendants

82. Plaintiff re-alleges and re-avers Paragraphs 1 through 80 of this Complaint as if fully set forth herein.

83. The Defendants violated Plaintiff's rights under the Fourth and Fourteenth Amendments, because they used unreasonable force without Plaintiff's consent.

84. Defendants engaged in and subjected Plaintiff to immediate harmful and/or offensive touching and battered him without his consent.

85. As a direct and proximate result of this breach, Plaintiff sustained the damages hereinbefore alleged.

SEVENTH CAUSE OF ACTION

Malicious Prosecution Under

New York State Law

86. Plaintiff re-alleges and re-avers Paragraph 1 through 84 of this Complaint as if fully set forth herein.

87. Defendants initiated the prosecution against Plaintiff.

88. Defendants lacked probable cause to believe Plaintiff was guilty or that a prosecution would succeed.

89. Defendants acted with malice.

90. The prosecution was terminated in Plaintiff's favor when all criminal charges were dismissed and sealed.

91. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

92. As a direct and proximate result of this breach, Plaintiff sustained the damages hereinbefore alleged.

EIGHTH CAUSE OF ACTION

Malicious Prosecution Under
42. U.S.C. § 1983 Against Individual Defendants

93. Plaintiff re-alleges and re-avers Paragraphs 1 through 91, of this Complaint as if fully set forth herein.

94. Defendants initiated the prosecution against Plaintiff.

95. Defendants lacked probable cause to believe Plaintiff was guilty or that a prosecution would succeed.

96. Defendants acted with malice.

97. The prosecution was terminated in Plaintiff's favor when all criminal charges were dismissed and sealed.

98. Accordingly, Defendants violated Plaintiff's Fourth Amendment rights.

99. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

NINTH CAUSE OF ACTION

Denial of Right to Fair Trial Under
New York State Law

100. Plaintiff re-alleges and re-avers Paragraphs 1 through 98 of this Complaint as if fully set forth herein.

101. Defendants fabricated false evidence to be used against Plaintiff that was likely to influence a jury's decision and forwarded said false information to the New York County District Attorney's Office.

102. Defendants' actions deprived Plaintiff of his right to a fair trial and caused post-arraignment restrictions to be imposed on his liberty and freedom of movement.

103. Accordingly, defendants violated Plaintiff's right to fair trial, pursuant to the Sixth and Fourteenth Amendments to United States Constitution, Article I, Sections 1, 2 and 6 of the New York State Constitution, as well Article II, Section 12, of the New York State Civil Rights Law.

104. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

105. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

TENTH CAUSE OF ACTION

Denial of Right to Fair Trial Under

42. .S.C. § 1983 Against Individual Defendants

106. Plaintiff re-alleges and re-avers Paragraphs 1 through 104 of this Complaint as if fully set forth herein.

107. Defendants fabricated false evidence to be used against Plaintiff that was likely to influence a jury's decision and forwarded said false information to the New York County District Attorney's Office.

108. Defendants' actions deprived Plaintiff of his right to a fair trial and caused post-arraignment restrictions to be imposed on his liberty and freedom of movement, including his post-arraignment detainment.

109. Accordingly, defendants violated Plaintiff's right to fair trial, pursuant to the Sixth and Fourteenth Amendments to United States Constitution, Article I, Sections 1, 2 and 6 of

the New York State Constitution, as well Article II, Section 12, of the New York State Civil Rights Law.

110. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

ELEVENTH CAUSE OF ACTION

Failure to Intervene Under
New York State Law

111. Plaintiff re-alleges and re-avers Paragraphs 1 through 109 of this Complaint as if fully set forth herein.

112. Those Defendants that were present but did not actively participate in the aforementioned unlawful conduct, observed such conduct, had an opportunity to prevent such conduct, had a duty to intervene and prevent such conduct and failed to intervene.

113. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

114. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

TWELFTH CAUSE OF ACTION

Failure to Intervene Under
42 .S.C. § 1983 Against Individual Defendants

115. Plaintiff re-alleges and re-avers Paragraphs 1 through 113 of this Complaint as if fully set forth herein.

116. Those Defendants that were present but did not actively participate in the aforementioned unlawful conduct observed such conduct, had an opportunity to prevent such conduct, had a duty to intervene and prevent such conduct and failed to intervene.

117. Accordingly, the Defendants who failed to intervene violated the Fourth and Fourteenth Amendments.

118. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

THIRTEENTH CAUSE OF ACTION

Malicious Abuse of Process Under
New York State Law

119. Plaintiff re-alleges and re-avers Paragraphs 1 through 118 of this Complaint as if fully set forth herein.

120. Defendants arrested, detained and caused a criminal prosecution to be initiated against Plaintiff to prevent the termination of their employment due to their unlawful acts.

121. Defendants had no excuse or justification to forcibly detain and initiate a prosecution against Plaintiff, especially with the absence of any cognizable probable cause.

122. Defendants intended to inflict substantial harm upon Plaintiff.

123. Defendants acts were in the furtherance of their own self-interests and committed so that defendants would avoid termination and any other negative consequences that would have rightfully resulted from their illegal acts.

124. Defendants abused the legal process to conceal their unlawful acts against Plaintiff and receive credit for an otherwise invalid and illegal arrest.

125. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

126. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

FOURTEENTH CAUSE OF ACTION

Malicious Abuse of Process Under
42 .S.C. § 1983 Against Individual Defendants

127. Plaintiff re-alleges and re-avers Paragraphs 1 through 126 of this Complaint as if fully set forth herein.

128. Defendants arrested, detained and caused a criminal prosecution to be initiated against Plaintiff to prevent the termination of their employment due to their unlawful acts.

129. Defendants had no excuse or justification to forcibly detain and initiate a prosecution against Plaintiff, especially with the absence of any cognizable probable cause.

130. Defendants intended to inflict substantial harm upon Plaintiff.

131. Defendants acts were in the furtherance of their own self-interests and committed so that defendants would avoid termination and any other negative consequences that would have rightfully resulted from their illegal acts.

132. Defendants abused the legal process to conceal their unlawful acts against Plaintiff and receive credit for an otherwise invalid and illegal arrest.

133. Defendants' actions deprived Plaintiff of his right to free from illegal searches and seizures, as well as his right not to be deprived of his liberty without due process of law.

134. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

FIFTEENTH CAUSE OF ACTION

Negligent Hiring, Retention and Supervision Under
New York State Law

135. Plaintiff re-alleges and re-avers Paragraph 1 through 134 of this Complaint as if fully set forth herein.

136. Defendant City owed a duty of care to Plaintiff to adequately hire, retain and supervise its employee defendants.

137. Defendant City breached that duty of care.

138. Defendant City placed defendants in a position where they could inflict foreseeable harm.

139. Defendant City knew or should have known of its employee defendants' propensity for violating the individual rights granted under the United States Constitution and the laws of the State of New York, prior to the injuries incurred by Plaintiff.

140. Defendant City failed to take reasonable measures in hiring, retaining and supervising its employee defendants that would have prevented the aforesaid injuries to Plaintiff.

141. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

SIXTEENTH CAUSE OF ACTION

Municipal "*Monell*" Liability Under
42. U.S.C. § 1983 Against Defendant City

142. Plaintiff re-alleges and re-avers Paragraphs 1 through 141 of this Complaint as if fully set forth herein.

143. Defendant City maintained a policy or custom that caused Plaintiff to be deprived of his civil rights, tacitly approved of such violative conduct or was deliberately indifferent toward the potential exposure of individuals, such as plaintiff, to such violative behavior.

144. Defendant City's employee police officers have engaged in an illegal pattern and practice of misconduct, so consistent and widespread that it constitutes a custom or usage, of which a supervisor or policymaker must have been aware of.

145. Defendant City, its policymakers and supervisors failed to provide adequate training or supervision to their subordinates, to such an extent that is tantamount to the City's deliberate indifference toward the rights of those who may come into contact with defendant City's employees.

146. Defendant City's employees engaged in such egregious and flagrant violations of plaintiff's Constitutional rights that the need for enhanced training or supervision is obvious and equates to a display of deliberate indifference by defendant City and its policymakers toward the rights of individuals, who may come into contact with defendant City's employees.

147. Defendant City's repeated refusal or failure to install or apply corrective or preventive measures constitutes the tacit approval of such violative behavior or a deliberate indifference to the rights of those who may be affected by such behavior.

148. Defendant City's conduct caused the violation of plaintiff's civil rights enumerated within the Constitution of the United States.

149. As a direct and proximate result of this unlawful conduct, plaintiff sustained the damages hereinbefore alleged.

WHEREFORE, Plaintiff respectfully requests judgment against Defendants, jointly and severally, as follows:

1. On the First Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
2. On the Second Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;

3. On the Third Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
4. On the Fourth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
5. On the Fifth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
6. On the Sixth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
7. On the Seventh Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
8. On the Eighth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
9. On the Ninth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;

10. On the Tenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
11. On the Eleventh Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
12. On the Twelfth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
13. On the Thirteenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
14. On the Fourteenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
15. On the Fifteenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
16. On the Sixteenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
17. Awarding Plaintiff punitive damages in an amount to be determined by a jury on all causes of action set forth herein;

18. Awarding Plaintiff reasonable attorneys' fees and costs pursuant to 42 U.S.C. §
1988;

Together with the costs and disbursements of this action.

JURY DEMAND

Plaintiff demands a trial by jury.

Dated: New York, New York
March 8, 2024

Yours, etc.,



John K. Kouroupas
GREENBERG & STEIN, P.C.
Attorney for Plaintiff(s)
Warren Foster
420 Lexington Avenue, Suite 2450
New York, New York 10170
(212) 681-2535
Our File No. 7275

TO:

City of New York
100 Church Street
New York, NY 10007

Police Officer Robert Uribe
2271-89 Frederick Douglass Blvd
New York, NY 10027

Police Officer MD J. Uddin
2271-89 Frederick Douglass Blvd
New York, NY 10027

ATTORNEY'S VERIFICATION

JOHN K. KOUROUPAS, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am an attorney at GREENBERG & STEIN, P.C., attorneys of record for Plaintiff(s), **WARREN FOSTER, DECEASED BY HIS MOTHER AND ADMINISTRATOR OF HIS ESTATE JOANNE FOSTER AND JOANNE FOSTER INDIVIDUALLY.**

I have read the annexed **SUMMONS AND VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files.

This verification is made by me because Plaintiff(s) is/are not presently in the county wherein I maintain my offices.

DATED: New York, New York
March 8, 2024



JOHN K. KOUROUPAS
GREENBERG & STEIN, P.C.
Attorney for Plaintiff(s)
**WARREN FOSTER, DECEASED BY HIS
MOTHER AND ADMINISTRATOR OF HIS
ESTATE JOANNE FOSTER AND JOANNE
FOSTER INDIVIDUALLY,**
420 Lexington Avenue, Suite 2450
New York, New York 10170
(212) 681-2535

Index No.
SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

WARREN FOSTER, DECEASED BY HIS MOTHER AND ADMINISTRATOR
OF HIS ESTATE JOANNE FOSTER AND JOANNE FOSTER INDIVIDUALLY,

Plaintiffs,

-against-

CITY OF NEW YORK, POLICE OFFICER ROBERT URIBE, and POLICE OFFICER
MD J UDDIN, and JOHN or JANE DOES "1-10", individually and officially in their
capacities as police officers,

Defendants.

SUMMONS AND VERIFIED COMPLAINT

GREENBERG & STEIN, P.C.
Attorneys for Plaintiff(s)
420 Lexington Avenue, Suite 2450
New York, New York 10170
(212) 681-2535

TO: